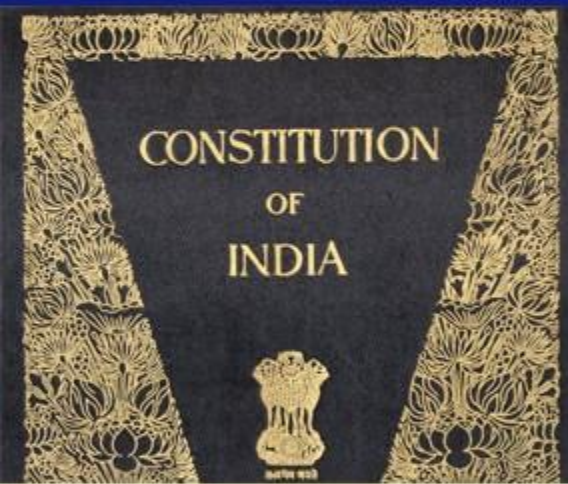


# INDIAN POLITY



**MODULE - 51**

**BASIC STRUCTURE OF  
THE CONSTITUTION**



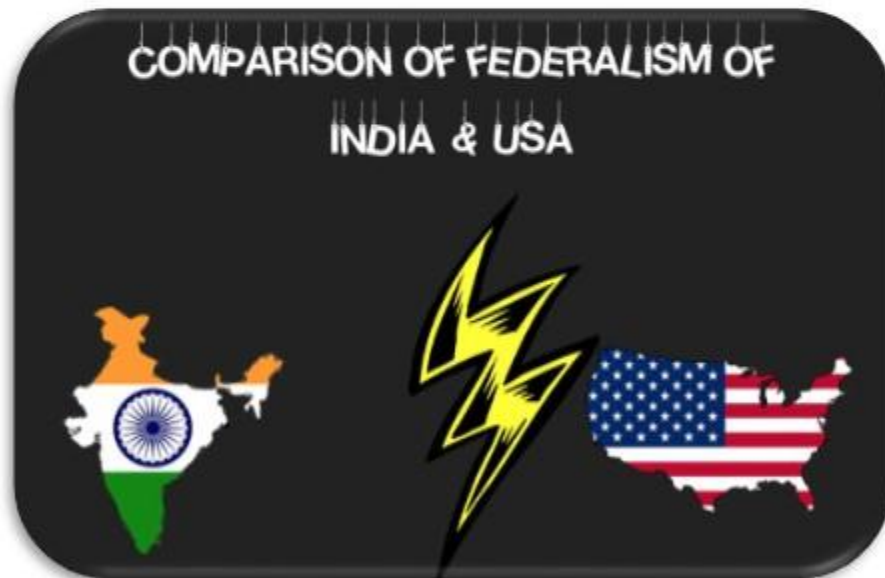
**"I measure the progress of  
a community by the degree of  
progress which women  
have achieved."**

***Death Anniversary of Bhim Rao Ambedkar on Dec 6<sup>th</sup>***



## CRITICISM OF THE AMENDMENT PROCEDURE

Critics have criticized the amendment procedure of the Constitution on the following grounds:



### POINT NO. 1

- There is no provision for a special body like Constitutional Convention (as in USA) or Constitutional Assembly for amending the Constitution.
- The constituent power is vested in the Parliament and only in few cases, in the State Legislatures.

## CRITICISM OF THE AMENDMENT PROCEDURE



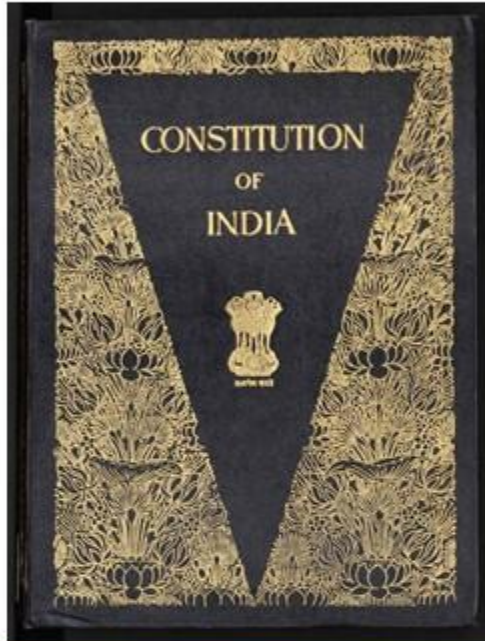
### POINT NO. 2

- The power to initiate an amendment to the Constitution lies with the Parliament.
- Hence, unlike in USA, the State legislatures cannot initiate any bill or proposal for amending the Constitution except in one case, that is, passing a resolution requesting the Parliament for the creation or abolition of legislative councils in the States.
- Here also, the Parliament can either approve or disapprove such a resolution or may not take any action on it.

***Power to initiate an amendment to Constitution lies with Parliament and not with Legislature***



## CRITICISM OF THE AMENDMENT PROCEDURE



### POINT NO. 3

- Major part of the Constitution can be amended by the Parliament **alone either by a special majority or by a simple majority.**
- Only in few cases, the consent of the state legislatures is required and that too, only half of them, while in USA, it is three-fourths of the States.

### POINT NO. 4

- The Constitution **does not prescribe the time frame** within which the state legislatures should ratify or reject an amendment submitted to them.
- Also, it is silent on the issue whether the states can withdraw their approval after according the same.



## CRITICISM OF THE AMENDMENT PROCEDURE



### POINT NO. 5

- The provisions relating to the amendment procedure are too sketchy.
- Hence, they **leave a wide scope** for **taking the matters to the judiciary**.

### POINT NO. 6

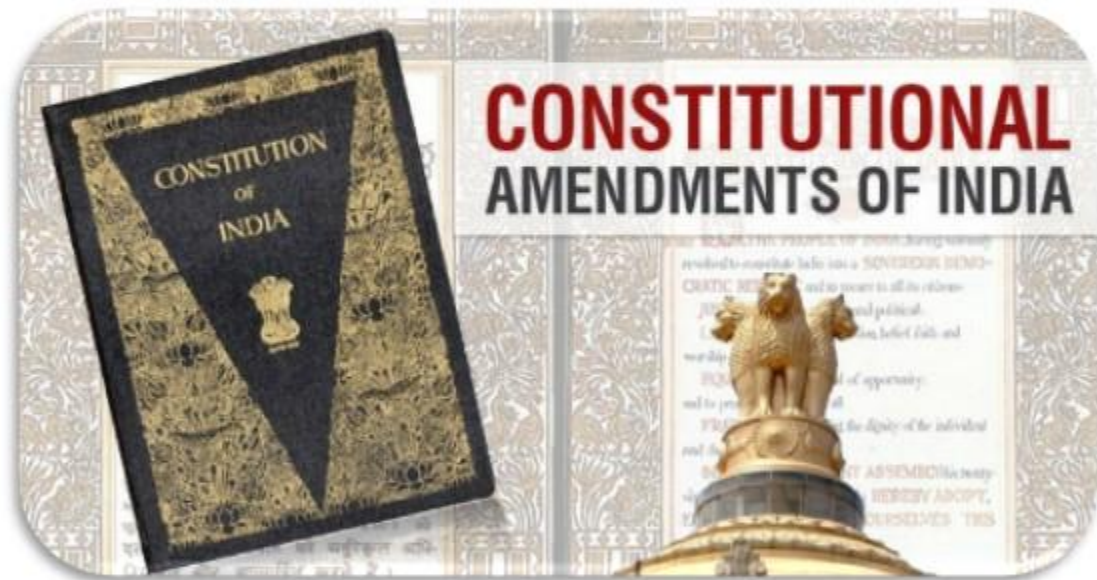
- There is no provision for holding a **joint sitting of both the Houses of Parliament** if there is a deadlock over the passage of a constitutional amendment bill.
- On the other hand, a provision for a joint sitting is made in the case of an ordinary bill.

### POINT NO. 7

- The process of amendment is similar to that of a legislative process.
- Except for the special majority, the constitutional amendment bills are to be passed by the Parliament in the same way as ordinary bills.



## CRITICISM OF THE AMENDMENT PROCEDURE



- 1 Despite these defects, it cannot be denied that the process has proved to be simple and easy and has succeeded in meeting the changed needs and conditions.
- 2 The procedure is not so flexible as to allow the ruling parties to change it according to their whims.
- 3 Nor is it so rigid as to be incapable of adopting itself to the changing needs.
- 4 It, as rightly said by K C Wheare, 'strikes a good balance between flexibility and rigidity'.

## CRITICISM OF THE AMENDMENT PROCEDURE



**Jawaharlal Nehru**

5

In this context, Pandit Jawaharlal Nehru said in the Constituent Assembly,

*“While we want this Constitution to be as solid and permanent as we can make it, there is no permanence in a Constitution. There should be a certain flexibility. If you make any Constitution rigid and permanent, you stop the nation’s growth, the growth of a living, vital and organic people”.*



## CRITICISM OF THE AMENDMENT PROCEDURE



**B.R. Ambedkar**

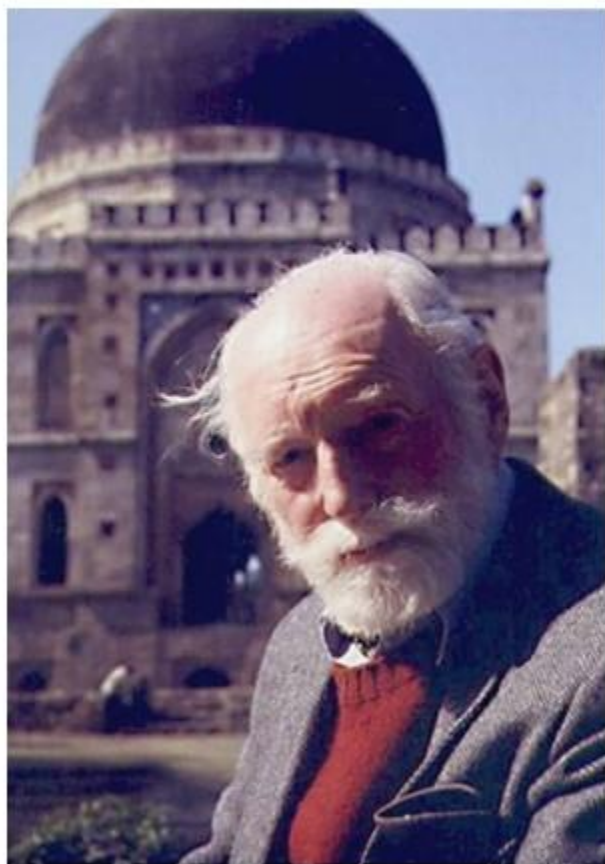
6

Similarly, Dr B R Ambedkar observed in the Constituent Assembly that,

*“The Assembly has not only refrained from putting a seal of finality and infallibility upon this Constitution by denying the people the right to amend the Constitution as in Canada or by making the amendment of the Constitution subject to the fulfilment of extraordinary terms and conditions as in America or Australia, but has provided for a facile procedure for amending the Constitution”.*



## CRITICISM OF THE AMENDMENT PROCEDURE

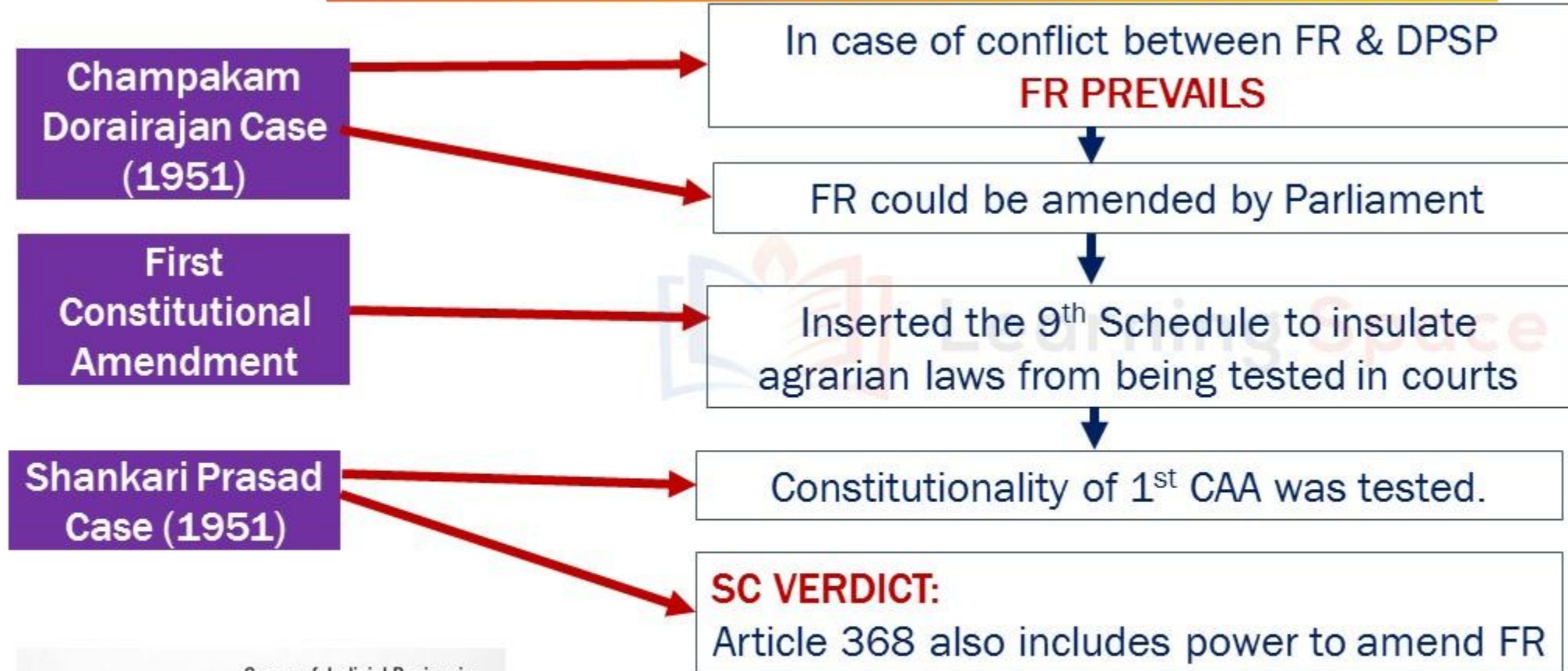


*Granville Austin*

- 7 K.C.Wheare has admired the variety of amendment procedures contained in the Constitution of India.
- 8 He said, 'this variety in the amending process is wise but rarely found'.
- 9 According to Granville Austin, 'the amending process has proved itself one of the most ably conceived aspects of the Constitution. Although it appears complicated, it is merely diverse'.



## EVOLUTION OF “BASIC STRUCTURE DOCTRINE”

**INTERPRETATION OF VERDICT:**

- “Law” in Article 13 includes only ordinary laws and not Constitutional Amendments.
- Article 13 laws inconsistent with FR shall be void.



## EVOLUTION OF “BASIC STRUCTURE DOCTRINE”

Period of 1955 to  
1964

4<sup>th</sup> and 17<sup>th</sup> Amendment Acts

Golaknath case  
(1967)

- FR were given a “Transcendental and Immutable position”
- Hence, Parliament cannot take away FR

**INTERPRETATION:**

- Article 13 meaning got expanded
- “Law” includes Constitutional Amendment also and if any amendment violates FR, it will be void.

## EVOLUTION OF “BASIC STRUCTURE DOCTRINE”

*Knee-jerk reaction  
of Parliament*

24<sup>th</sup> Amendment  
(1971)

Parliament has power to amend any part of  
Constitution including FR

Keshavananda  
Bharati Case

Upheld the validity of 24<sup>th</sup> CAA

But, the amendments so made by the  
Parliament does **NOT ENABLE IT TO ALTER  
THE “BASIC STRUCTURE” OF CONSTITUTION.**

42<sup>nd</sup> CAA

No limitation on Constituent power of  
Parliament and no judicial scrutiny of such  
amendments

Minerva Mills case  
(1980)

Restored Constitutional Harmony and  
further reiterated the “BASIC STRUCTURE”



**BASIC STRUCTURE OF THE CONSTITUTION****EMERGENCE OF THE BASIC STRUCTURE**

- 1** The question whether Fundamental Rights can be amended by the Parliament under Article 368 came for consideration of the Supreme Court within a year of the Constitution coming into force.
- 2** In the **Shankari Prasad case (1951)**, the constitutional validity of the **First Amendment Act (1951)**, which curtailed the right to property, was challenged.
- 3** The Supreme Court ruled that the power of the Parliament to amend the Constitution under Article 368 also includes the power to amend Fundamental Rights.



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE

- 4 The word 'law' in Article 13 includes only ordinary laws and not the constitutional amendment acts (constituent laws).



- 5 Therefore, the Parliament can abridge or take away any of the Fundamental Rights by enacting a constitutional amendment act and such a law will not be void under Article 13.

- 6 But in the **Golak Nath case**, the Supreme Court reversed its earlier stand.

- 7 In that case, the constitutional validity of the Seventeenth Amendment Act (1964), which inserted certain acts in the Ninth Schedule, was challenged.



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE



***Conflict between the Supreme Court and the Parliament***

**8** The Supreme Court ruled that the Fundamental Rights are given a '**transcendental and immutable**' position and hence, the Parliament cannot abridge or take away any of these rights.

**9** A constitutional amendment act is also a law within the meaning of Article 13 and hence, would be void for violating any of the Fundamental Rights.

**10** The Parliament reacted to the Supreme Court's judgement in the Golak Nath case (1967) by **enacting the 24<sup>th</sup> Amendment Act (1971)**. This Act amended Articles 13 and 368.



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE



- 11** It declared that the Parliament has the power to **abridge or take away any of the Fundamental Rights under Article 368** and such an act will not be a law under the meaning of Article 13.
- 12** However, in the **Kesavananda Bharaati Case (1973)**, the Supreme Court overruled its judgment in the **Golak Nath Case (1967)**.
- 13** It upheld the validity of the **24<sup>th</sup> Amendment Act (1971)** and stated that Parliament is empowered to abridge or take away any of the Fundamental Rights.



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE

- 14** At the same time, it laid down a new doctrine of the “Basic Structure” (or Basic Features) of the Constitution.



- 15** It ruled that the constituent power of Parliament under Article 368 does not enable it to alter the “Basic Structure” of the Constitution.

- 16** This means that the Parliament cannot abridge or take away a Fundamental Right that forms a part of the “Basic Structure” of the Constitution.

- 17** The doctrine of basic structure of the Constitution was reaffirmed and applied by the Supreme Court in the **Indira Nehru Gandhi case (1975)**.



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE



VERSUS

*Judiciary vs Legislature*

**18** In this case, the Supreme Court **invalidated a provision of the 39<sup>th</sup> Amendment Act (1975)** which kept the election disputes involving the Prime Minister and the Speaker of Lok Sabha outside the jurisdiction of all courts.

**19** The courts said that this **provision was beyond the amending power of Parliament as it affected the basic structure of the Constitution.**

**20** Again, the Parliament reacted to this judicially innovated doctrine of basic structure by enacting the 42<sup>nd</sup> Amendment (1976)



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE



VERSUS

*Judiciary vs Legislature*

**21** This Act amended Article 368 and declared that there is no limitation on the constituent power of Parliament and **no amendment can be questioned in any court on any ground including that of the contravention of any of the Fundamental rights.**

**22** However, the Supreme Court in the Minerva Mills case (1980) invalidated this provision as it excluded judicial review which is a “Basic Feature” of the Constitution.



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE

**23** Applying the doctrine of basic structure with respect to Article 368, the court held that:

*“Since the Constitution had conferred a **limited amending power on the Parliament**, the Parliament cannot under the exercise of that limited power enlarge **that very power into an absolute power**. Indeed, a limited amending power is one of the basic features of the Constitution and therefore, the limitations on that power cannot be destroyed.*

*In other words, Parliament cannot, under Article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the Constitution or to destroy its basic features. The donee of a limited power cannot by the exercise of that power convert the limited power into an unlimited one”.*



## BASIC STRUCTURE OF THE CONSTITUTION

## EMERGENCE OF THE BASIC STRUCTURE

- 24** Again in the **Waman Rao Case** (1981), the Supreme Court **adhered to the doctrine of the basic structure** and further clarified that it would apply to Constitutional amendments enacted after April 24, 1973 (i.e the date of the judgment in the Kesavananda Bharati Case).





## BASIC STRUCTURE OF THE CONSTITUTION

### ELEMENTS OF THE BASIC STRUCTURE



- 1 The present position is that the Parliament under Article 368 can amend any part of the Constitution including the Fundamental Rights but without affecting the “Basic Structure” of the Constitution.
- 2 However, the Supreme Court is yet to define or clarify as to what constitutes the “Basic Structure” of the Constitution.
- 3 From the various judgments, the following have emerged as “Basic Features” of the Constitution or elements/ components/ ingredients of the “Basic Structure” of the Constitution:



## ELEMENTS OF THE BASIC STRUCTURE

BASIC FEATURES OF THE CONSTITUTION OR BASIC STRUCTURE  
OF THE CONSTITUTION FROM VARIOUS JUDGMENTS

- 1) Supremacy of the Constitution
- 2) Sovereign, democratic and republican nature of the Indian Polity
- 3) Secular character of the Constitution.
- 4) Separation of powers between the legislature, the executive and judiciary
- 5) Federal Character of the Constitution
- 6) Unity and Integrity of the nation
- 7) Welfare State (Socio-Economic justice)
- 8) Judicial review
- 9) Freedom and Dignity of the individual
- 10) Parliamentary system
- 11) Rule of Law



## ELEMENTS OF THE BASIC STRUCTURE

BASIC FEATURES OF THE CONSTITUTION OR BASIC STRUCTURE  
OF THE CONSTITUTION FROM VARIOUS JUDGMENTS

- 12) Harmony and balance between Fundamental Rights and Directive Principles
- 13) Principle of Equality
- 14) Free and Fair elections
- 15) Independence of Judiciary
- 16) Limited power of Parliament to amend the Constitution
- 17) Effective access to justice
- 18) Principles (or essence) underlying Fundamental Rights
- 19) Power of the Supreme Court under Article 32, 136, 141 and 142
- 20) Powers of the High Court under Articles 226 and 227



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